

15 July 2025

Secretariat of the ICC International Court of Arbitration
33-43 avenue du Président Wilson
75116 Paris, France
Via ICC Case Connect

Re: Case No. 29534/ICA3 - Claimant's position on Respondents' suggestions regarding Arbitrator qualifications and constitution of tribunal.

Dear Members of the Secretariat,

We respond to the Secretariat's 2 July letter (extension to 15 July) seeking our comments on Respondents' proposed arbitrator qualifications.

On 2 July 2025 Respondents' counsel invited a joint sole-arbitrator nomination and, in the alternative, offered to discuss amending the clause to permit a three-member tribunal. Claimant welcomes this constructive stance. Because those proposed procedural changes also impact the required qualifications, we sought, and received an extension until July 15, 2025 to deliberate and respond to the suggestions made by the Respondent. We have now assessed the Respondents' qualification proposals and the two appointment procedures.

I. CLAIMANT'S POSITION ON TRIBUNAL COMPOSITION

Contractual mandate

Claimant respectfully reaffirms its position that the arbitral tribunal should be constituted in accordance with Clause 10.2 of the Shareholders' Agreement dated March 24, 2023 ("SHA"), which expressly provides for a sole arbitrator. This provision represents the parties' considered agreement and should therefore serve as the basis for tribunal constitution.

Time and cost advantage

The appointment of a sole arbitrator serves the time-sensitive nature of enforcement at the heart of this dispute. We submit a sole arbitrator delivers greater efficiency, reduced costs, and expedited proceedings. These considerations are significant given the commercial urgency underlying Claimant's claims. The speedy resolution and enforcement of put option rights preserves commercial value and purpose of the principal contractual provisions at issue.

II. CLAIMANT'S POSITION ON ARBITRATOR QUALIFICATIONS

Core qualifications

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While Claimant values constructive dialogue on arbitrator selection, we submit that the qualifications outlined in our Request for Arbitration represent essential requirements (rather than mere guidelines). The nature of this dispute, involving shareholder arrangements, financial valuation mechanisms, and cross-border issues, demands an arbitrator with expertise across multiple domains.

Governing Law

While Austrian corporate and tax law knowledge holds relevance for certain aspects of the dispute, it is English law that governs the SHA. The adjudication of rights under the SHA requires specialized expertise in contractual interpretation, shareholder rights and remedies, joint venture arrangements, and put option mechanics under English law. Put option enforcement, fair value determination, material breach assessment, and shareholder remedy evaluation demand substantive expertise in English jurisprudence governing corporate transactions and commercial relationships.

Selection criteria

Claimant maintains that the appointed arbitrator must possess experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and financial issues. Expertise with English law as the governing law of the SHA remains fundamental, complemented by understanding of Austrian corporate law principles relevant to the dispute. It is also crucial for the arbitrator to have financial understanding sufficient to comprehend accounting issues and expert evidence related to EBITDA calculations, financial statement analysis and valuation methodologies. Finally, fluency in English and availability to conduct the arbitration efficiently remain non-negotiable requirements.

III. PROCEDURAL OPTIONS

Joint Nomination

Regarding Respondent counsel's proposal for joint nomination of a sole arbitrator, Claimant recognizes the potential benefits of collaborative arbitrator selection. Joint nomination is problematic due to the urgency and fundamental differences in our respective views of essential qualifications. These factors will complicate in reaching an agreement on an optimal candidate.

The ICC Court's appointment process under Article 12(3) of the ICC Rules provides adequate safeguards for ensuring both impartiality and the selection of an arbitrator with the required expertise. While joint nomination can be valuable in appropriate circumstances, Claimant believes the ICC Court's process offers the most reliable path to securing an appropriate sole arbitrator for due resolution of this dispute.

Three-member tribunal alternative

Claimant appreciates Respondents' openness to this. Claimant maintains adherence to the contractual framework established in SHA Clause 10.2. Amending the arbitration agreement introduces additional complexity, increases costs and duration, and undermines efficiency essential for time-sensitive enforcement. The parties' original negotiation and agreement on a sole arbitrator reflects their

assessment of appropriate tribunal constitution for their disputes. No compelling justification exists to deviate from this negotiated arrangement.

IV. REQUEST TO THE ICC COURT

Claimant requests ICC Court appointment of a sole arbitrator with the qualifications specified in our Request for Arbitration. Put Option enforcement urgency and underlying commercial complexity demand prompt constitution of a properly qualified tribunal for effective dispute resolution.

Claimant trusts that the ICC Court will ensure the appointment of an arbitrator with the necessary expertise to adjudicate this international commercial dispute effectively, efficiently, and in accordance with the highest standards of arbitral practice.

Yours faithfully,



Sudipta Routh
Partner
Luthra and Luthra Law Offices India